

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesselstine**

Hearing Date and Time: September 3, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name Case Number	Tentative
1.	<i>In Re: Jackson</i> <i>2026-01580778</i>	Before the court is the hearing on the unopposed petition of petitioner J.G. Wentworth Originations, LLC (Petitioner) for approval of transfer of certain structured settlement payment rights. As more fully set forth below, the petition is GRANTED. Under the proposed transfer, payee and real party in interest Alden Jackson (Payee) would transfer to Petitioner the right to receive 24 monthly payments of \$800 starting March 7, 2027, to February 7, 2029, two annual payments of \$10,000 on March 7, 2027, and March 7, 2028, one lump sum payment of \$50,000 on March 7, 2031, one lump payment of \$50,000 on March 7, 2036, one lump sum payment of \$100,000 on March 7, 2041, and one lump sum payment of \$36,854.36 on March 7, 2046. These future payments total \$276,054.36 and have a discounted present value of \$169,589.65. In return for transferring the right to receive these payments, Payee will receive a current lump sum payment of \$110,000, which represents 64.86 of the discounted present value and means the transaction has an equivalent interest rate of 10.70 percent. The court has received and reviewed the following documents and all exhibits and document attached thereto: (1) the verified petition (ROA 2); (2) the declaration of Payee in support of the petition (ROA 5); (3) the notice of

		hearing (ROA 4); and (4) the notice of filing compliant purchase contract signed on June 16, 2026 (ROA 12). Based on those documents and exhibits, the court makes the following findings as required by Insurance Code sections 10137 and 10139.5(a): (1) The transfer is fair and reasonable and in the best interest of Payee, taking into account the welfare and support of his dependents; (2) Payee has been advised in writing by Petitioner to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived, in writing, the opportunity to receive the advice; (3) Petitioner has provided Payee with a disclosure form that complies with Insurance Code section 10136, and the transfer agreement complies with Insurance Code sections 10136 and 10138; (4) The transfer does not contravene any applicable statute or the order of any court or other government authority and otherwise complies with the requirements of Insurance Code section 10134, et seq.; (5) Payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Insurance Code section 10136; and (6) Payee understands and does not wish to exercise his right to cancel the transfer agreement. In addition, Petitioner has established Payee's residence and that venue is proper in this court. Based on the foregoing, the petition is GRANTED. Petitioner's counsel is ordered to submit a proposed order approving the transfer consistent with the requirements of Insurance Code section 10134 et seq., and to give notice of this ruling.
2.	<i>McKinney vs. Piecemakers</i> <i>2018-00983085</i>	Before the court is the motion to appoint a receiver filed by plaintiff and judgment creditor Michelle McKinney (Creditor). As more fully set forth below, the motion is DENIED. Creditor requests the court appoint a receiver for the purpose of carrying out the monetary judgment entered in this action, including but not limited to, taking possession of and selling the real property located at 1920 Swan Drive, Costa Mesa, California, which is allegedly owned, at least in significant part, by defendant and judgment debtor Douglas Follette (Debtor). Creditor moves for appointment of the receiver pursuant to Code of Civil Procedure section 564, subdivision (b)(3). That code section provides a receiver may be appointed by the court in which an action or proceeding is pending

		"[a]fter judgment, to carry the judgment into effect." (Code Civ. Proc., § 564, subds. (a)-(b)(3).) "Because the appointment of a receiver transfers property . . . 'out of the hands of its owners' and into the hands of a receiver [citation], the appointment of a receiver is a very 'drastic,' 'harsh,' and costly remedy that is to be 'exercised sparingly and with caution.' [Citations.] Due to the 'extraordinary' nature of this remedy and the special costs it imposes, courts are strongly discouraged—although not strictly prohibited—from appointing a receiver unless the more intrusive oversight of a receiver is a 'necessity' because other, less intrusive remedies are either 'inadequate or unavailable.'" . . . [¶] In light of the sheer number of enforcement mechanisms for collecting money judgments under the Enforcement of Judgments Law (which range from levies to liens to wage garnishment (§§ 695.010 et seq., 697.010 et seq., 699.010 et seq., 699.510 et seq., 706.020 et seq.); accord, <i>Tucker, supra</i>, 70 Cal.App.2d at p. 773, 161 P.2d 697 ['ordinarily a judgment creditor is able to collect money . . . by way of garnishment or levy of execution']), appointment of a receiver is rarely a 'necessity' and, as a consequence, 'may not ordinarily be used for the enforcement of a simple money judgment.' (<i>Jackson, supra</i>, 253 Cal.App.2d at p. 1040, 62 Cal.Rptr. 121; accord, <i>White v. White</i> (1900) 130 Cal. 597, 599, 62 P. 1062 [receiver may not be appointed to collect a money judgment under section 564, subdivision (b)(3)].) Instead, the appointment of a receiver to enforce a money judgment is reserved for 'exceptional' circumstances where the judgment creditor's conduct makes a receiver necessary—and hence 'proper.' [Citations.] This occurs when the judgment debtor has frustrated the judgment creditor's collection efforts through obfuscation or through otherwise contumacious conduct that has rendered feckless the panoply of less intrusive mechanisms for enforcing a money judgment. [Citations.]" (<i>Medipro Med. Staffing LLC v. Certified Nursing Registry, Inc.</i> (2021) 60 Cal.App.5th 622, 628-629.) Creditor relies on <i>Olsan v. Comora</i> (1977) 73 Cal.App.3d 642, 647 (<i>Olsan</i>), as support for its request to appoint a receiver to aid in the collection of a money judgment. <i>Olsan</i>, however, predated the Enforcement of Judgments Law from 1982. (<i>Wells Fargo Fin. Leasing, Inc. v. D & M Cabinets</i> (2009) 177 Cal. App. 4th 59, 70 and 76.) More importantly, <i>Olsan</i> is readily distinguishable on its facts. In <i>Olsan</i>, the plaintiff provided a declaration in support of the request to appoint a receiver that Plaintiff had "done everything possible to satisfy the judgment by levy of
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		execution, and had conducted a diligent search to discover other assets. Statements by [Defendant] to [Plaintiff's] attorney made after the first execution support a conclusion that no assets other than his business income were available to satisfy the judgment or, if there were, he had, or would, take such action as necessary to prevent their seizure to satisfy the judgment. Here, the declarations in support of the motion for appointment of a receiver obviously convinced the court that a receiver was necessary in aid of the partially satisfied execution." (<i>Olsan, supra</i>, 73 Cal.App.3d at p. 648.) Unlike in <i>Olsan</i>, Plaintiff in the present case has not provided any details regarding her attempts to satisfy the judgment. Plaintiff states the Piecemakers filed for bankruptcy and a stay, and that Follette argued the bankruptcy stay should apply to Follette as well, which has not been denied. (Weaver Decl. ¶ 13.) Plaintiff also stated Follette made inconsistent statements regarding the Property. (Weaver Decl. ¶ 15.) What Plaintiff has not alleged is any actual efforts to collect the judgment against Follette or that any of the Enforcement of Judgments Law collection methods have been attempted. Plaintiff claims there is a conspiracy between the Defendants regarding the bankruptcies filed by Piecemakers and Stanfield (the latter has been dismissed) and other members of Piecemakers filing claims for wages in the bankruptcy court, however, there is nothing regarding efforts to seek the assets of Follette or any bankruptcy filed by Follette. Further, Plaintiff provided no citations showing a bankruptcy filing is an exceptional circumstance which would permit the receiver. The court simply has not been convinced that the necessary circumstances have been shown to support and justify appointment of a receiver to enforce the monetary judgment at this point. Indeed, Creditor has not shown any "exceptional" circumstances exist which would require the appointment of a receiver. Creditor has not shown any attempts to collect the judgment against Debtor or attempts, outside of co-debtors' bankruptcy filings, to obfuscate any attempt to collect the judgment from Debtor specifically. It would be an abuse of this court's discretion to appoint a receiver without substantial evidence supporting the need for a receiver. (<i>Medipro, supra</i>, 60 Cal. App. 5th at p. 629.) For the above reasons, the motion is DENIED. Creditor's counsel is ordered to give notice of this ruling.
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3.	<i>Xie vs. Chang</i> <i>2025-01481320</i>	Before the court is the petition to confirm contractual arbitration award filed by petitioners Shuchun Xie and Zixuan An (collectively, Petitioners) against respondents Emerald Monkey, LLC, Emerald Dragon, LLC, Alan Tsai, Edward Manolos, and Henry Chang (collectively, Respondents). As more fully set forth below, the petition is GRANTED. By this petition, Petitioners seek to confirm the contractual arbitration award JAMS arbitrator Judge Richard M. Silver (Ret.) (Arbitrator) issued and served on January 3, 2025, awarding Petitioners a total of \$197,957.73 in the following sums: (1) From Henry Chang individually – \$68,750.00; (2) From all Respondents, jointly and severally – \$78,000.00; and (3) From all respondents, individually and jointly (a) attorney fees in the amount of \$10,155.69 and an additional amount of \$1,500.00 incurred to complete arbitration; (b) costs in the amount of \$12,885 less any refunds from JAMS; (c) pre-judgment interest in the amount of \$10,682.28 as against Henry Chang; and pre-judgment interest in the amount of \$15,984.76 against Emerald Monkey, LLC, Emerald Dragon, LLC, and guarantors Henry Chang, Edward Manolos, and Alan Tsai both through November 18, 2024, and continuing thereafter at the rate of 10% per annum. (Petition § 8, Ex. 8c.) A petition to confirm a contractual arbitration award must (1) set forth the substance of or have attached a copy of the agreement to arbitrate; (2) set forth the names of the arbitrators; and (3) set forth or have attached a copy of the award and the written opinion of the arbitrators, if any. (Code Civ. Proc., § 1285.4.) If a petition to confirm an arbitration award “is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.) If the award is confirmed, an enforceable judgment is entered with the same force and effect as a judgment in a civil action. Here, the petition complies with the foregoing requirements by attaching a copy of the parties’ arbitration agreement, identifying the Arbitrator, and attaching a copy of the final award the Arbitrator issues and served on all parties. Accordingly, the petition must be granted and the award confirmed unless Respondents establish a basis for vacating
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		or correcting the award. Respondents did not oppose the petition or file a petition to vacate or correct the award. The court therefore GRANTS the petition subject to Petitioners clarifying the correct amount of the award and the judgment to be entered. The court notes the sum total in the award itself was \$197,957.73. The petition states Respondents are to pay \$185,072.73 to Petitioners (Petition §§ 3(b) and 8(b)(1)), but also provides sums totaling \$187,927.73. (Petition § 8(b)(4).) The court will enter the total following a discussion. Counsel for Petitioners to give notice.
4.	<i>Smith vs. Interinsurance Exchange of the Automobile Club</i> 2026-01542336	Before the court is the second petition to compel arbitration filed by petitioner Mark Smith (Petitioner) seeking an order compelling respondent Interinsurance Exchange of the Automobile Club (Respondent) to arbitrate Petitioner's pending underinsured motorist claim with Respondent. <u>Petitioner's counsel, Mark B. Plummer, and Respondent's counsel, Willis J. King, III, are ordered to appear for the hearing to discuss this matter. Remote appearances are acceptable.</u> Code of Civil Procedure section 1281.2 requires the court to order arbitration if it determines an agreement to arbitrate the controversy exists and a party to the agreement refuses to arbitrate that controversy, unless it determines: (a) the right to compel arbitration has been waived by the party seeking to compel arbitration, (b) grounds exist for rescission of the agreement to arbitrate, or (c) a party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2, subds. (a)-(c).) Petitioner contends Respondent has refused to participate in, or schedule, binding arbitration. Respondent denies these claims. Respondent's counsel attests Respondent has never refused to arbitrate Petitioner's UIM claim and has agreed the claim should proceed to arbitration pursuant to the applicable insurance policy. (King III Decl., ¶ 2.) Furthermore, on May 19, 2026, Respondent's counsel sent an email to Petitioner's counsel reiterating Respondent's willingness to proceed with arbitration, proposing multiple arbitrators and requesting the parties simply schedule the arbitration and avoid further motion practice or delay, but

		Petitioner's counsel did not respond. (King III Decl., ¶¶ 11-14; Ex. B.) Petitioner's reply does not address this email. As stated above, all counsel are ordered to appear for the hearing to discuss the current status of the arbitration and why it has not been scheduled.
5.	<i>Firas Mina Elias Aldayyat vs. Mercury Insurance Company</i> 2025-01480905	Before the court is they motion by petitioner Firas Mina Elias Aldayyat (Petitioner) seeking an order compelling the deposition of non-party Robert Moghadam, Esq. (Mr. Moghadam) in connection with Petitioner's underinsured motorist claim currently pending with respondent Mercury Insurance Company. For the reasons set forth below, the motion is GRANTED. (Code Civ. Proc., § 1987.1(a).) Petitioner seeks to compel Mr. Moghadam's deposition testimony pursuant to a deposition subpoena for personal appearance issued by Petitioner on March 24, 2026. Mr. Moghadam filed an untimely opposition in which he indicated he opposes the motion only to the extent it seeks an unqualified order compelling him to testify without regard to the attorney-client privilege. Petitioner does not appear to be seeking such an order. Petitioner seeks an order directing compliance with the deposition subpoena and even indicated any concerns regarding privilege should be addressed at the deposition by way of objection as to the particular question and content. Mr. Moghadam does not dispute his testimony pertaining to non-privileged matters is relevant to the pending underinsured motorist claim. Moreover, Mr. Moghadam did not serve any formal objection to the deposition subpoena, nor did he file a motion to quash the subpoena. Mr. Moghadam acknowledges he previously represented Petitioner and Dina Nimri in connection with the underlying automobile accident. He does not dispute he may have knowledge of non-privileged, relevant information. No basis has been established for the outright refusal to appear for deposition. Accordingly, the motion is GRANTED. Mr. Moghadam is ordered to appear for deposition within 30 days of service of notice of this order. Although all parties acknowledge the attorney-client privilege likely will apply to prevent responses to certain questions, the court cannot rule any a prospective privilege objection in a vacuum. Indeed, without a specific question(s) and a factual context, the court cannot rule what specific information is or is not privileged. Accordingly, Mr. Moghadam may assert objections to particular questions based on the attorney-client privilege

		at the deposition and any dispute among the parties will have to be resolved through a future motion to the extent they are unable to resolve it through meet-and-confer efforts. Petitioner shall give notice of the deposition date to Dina Nimri. Petitioner is ordered to give notice of this ruling.
6.	Worldwide Credit Co, LLC vs. Wade Kirk 2025-01521959	Based on the acknowledgment of satisfaction of judgment in full plaintiff and judgment creditor Worldwide Credit Co, LLC filed on August 31, 2026, the court has not prepared a tentative ruling on the merits. All counsel are ordered to appear for the hearing to address whether the motion to vacate is moot or otherwise has been withdrawn.
7.	Squires Lumber Company vs. McGee Contracting Inc. 2023-01300636	CONTINUED to September 17, 2026, pursuant to August 31, 2026 Minute Order
8.	Walker vs. Shaw 2020-01144299	CONTINUED to be heard in Department C21 on November 6, 2026.
9.	LVNV Funding LLC vs. Abrams 2023-01331686	Before the court is the hearing on a claim of exemption presented by judgment debtor J J Abrams (Debtor) and the opposition to claim of exemption filed by judgment creditor LVNV Funding, LLC (Creditor). As set forth more fully below, the claim of exemption beyond the automatic exemption of Code of Civil Procedure section 706.050 is DENIED. The earnings withholding order served on Debtor's employer Mesa International Technologies, Inc. and currently in effect with respect to Debtor's earnings is \$1,020.05 per month (or \$470.79 every two weeks). The amount of the earnings withholding order is 20 percent of Debtor's monthly take home pay and reflects the automatic exemption set forth in Code of Civil Procedure section 706.050, subdivision (a). Debtor seeks a claim of exemption on the entire amount of the earnings withholding order which he claims is needed to support himself or his family. Under Code of Civil

		Procedure section 706.051, subdivision (b), "the portion of the judgment debtor's earnings that the judgment debtor proves is necessary for the support of the judgment debtor or the judgment debtor's family supported in whole or in part by the judgment debtor is exempt from levy" under the Wage Garnishment Law. The court must take into account all income available to the Debtor and his family, including the spouse's separate earnings. (Code of Civ. Proc., § 703.115.) Here, Debtor failed to prove the \$1,020.05 subject to the withholdings order is necessary for his support and/or the support of his family. Based on Debtor's financial statement, the stated monthly income of Debtor and his spouse (excluding his mother-in-law) exceeds monthly expenses by \$567.90. If his mother-in-law's income is included, it exceeds monthly expenses by \$1,838.90. In addition, the storage, pets and miscellaneous household expenses are not adequately supported or justified. Finally, there is no showing that the numerous other credit card and other debt has been reduced to a judgment and subject to enforcement. Debtor has not met his burden to establish the amount being withheld meets the standard of necessary for support. The claim of exemption is therefore DENIED. Counsel for Creditor is ordered to give notice of this ruling.
10.	<i>Jhumra vs. Orange County Global Medical Center, Inc.</i> 2025-01483496	Before the court is the motion to designate case complex filed by plaintiffs Khusro Jhumra by and through his guardian ad litem Maliha Siddiqui, and Maliha Siddiqui. As more fully set forth below, the motion is DENIED. The designation of a case as complex is governed by California Rules of Court, rule 3.400, et seq. Rule 3.400(a) provides, a "'complex case' is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel." Rule 3.400(b) establishes a nonexclusive list of factors the court must consider in determining whether a case is complex. The factors include "whether the action is likely to involve: [¶] (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; [¶] (2) Management of a large number of witnesses or a substantial amount of documentary evidence; [¶] (3) Management of a large number of separately represented parties; [¶] (4) Coordination with related actions pending in one or more courts in other

		counties, states, or countries, or in a federal court; or [¶] (5) Substantial postjudgment judicial supervision.” The factors stated in rule 3.400(b) are not an exhaustive list of the factors a court must consider, nor must all the identified factors be present to deem a case complex. Rather, the court must consider the totality of the circumstances presented in the particular case and what is needed to manage and potentially try the case. The factors identified in rule 3.400(b) are simply illustrations of the type of considerations the court must evaluate and perhaps even just one of those factors could justify a complex case designation in an appropriate case. (See <i>Ford Motor Warranty Cases</i> (2017) 11 Cal.App.5th 626, 641, <i>First State Ins. Co. v. Superior Court</i> (2000) 79 Cal.App.4th 324, 332.) Rule 3.400(c) identifies the following types of claims as provisionally complex: “(1) Antitrust or trade regulation claims; [¶] (2) Construction defect claims involving many parties or structures; [¶] (3) Securities claims or investment losses involving many parties; [¶] (4) Environmental or toxic tort claims involving many parties; [¶] (5) Claims involving mass torts; [¶] (6) Claims involving class actions; or [¶] (7) Insurance coverage claims arising out of any of the claims listed in (c)(1) through (c)(6).” “With or without a hearing, the court may decide on its own motion, or on a noticed motion by any party, that a civil action is a complex case or that an action previously declared to be a complex case is not a complex case.” (Cal. Rules Ct., rule 3.403.) Neither the parties’ stipulation nor the lack of any opposition to a motion to deem a case complex justifies granting such a motion. As with motions to seal documents, the court must independently review the matter and determine whether a case meets the standards of rule 3.400. The within action arises out of a medical malpractice claim wherein plaintiff Khusro Jhumra alleges he suffered a brain injury while under the care of the defendants. There is no claim this matter falls within any of the categories of cases deemed provisionally complex by rule 3.400(c). Accordingly, this motion turns on the court’s evaluation of the factors identified in rule 3.400(b) and related considerations.
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		Plaintiff asserts this case is complex based on the number of anticipated non-expert and expert depositions, the number of witnesses, the number of parties and counsel, and the volume of documentary evidence. As for the depositions, Plaintiffs state they anticipate taking 23 depositions (Hodes Decl. ¶2) and they may designate eight experts. (Hodes Decl. ¶3) The court, however, is not persuaded this case meets the threshold for being deemed complex. Complicated does not equate to complex within the meaning of rule 3.400. The judges of this court's unlimited civil panel are experienced in handling complicated cases and trials and have many tools available to them to handle and manage larger cases. It is not uncommon for them to hear cases with many witnesses. Moreover, a large number of depositions does not necessarily equate to a large number of trial witnesses. Our judges also are experienced with handling cases involving a large number of documents. Indeed, it is not unusual for medical malpractice, business disputes, real estate disputes, and many other types of cases our unlimited civil panel hears to involve a large volume of documentary evidence. Given the brain and other injuries allegedly involved in this case, it is clear the documentary evidence in this case will be extensive, but the court is not convinced it is sufficient to warrant a complex case designation. For better or worse, as business and society has transitioned from paper files to electronic files and communications, the volume of documents involved in any litigation has expanded significantly, along with the ability and tools of counsel and the court to manage documents. The volume of parties and counsel involved also does not support a complex case designation. This case involves two plaintiffs represented by the same law firm. There appears to be approximately 17 defendants, but many of them share counsel such that there are only five defense firms involved. In the end, whether considered individuals or cumulative, and based on the totality of the circumstances presented, the standards in rule 3.400 do not support deeming this case to be complex. Based on the foregoing, the motion is DENIED. Plaintiffs' counsel is ordered to give notice of this ruling.
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11.	<i>HDO 14, LLC vs. DiVita Builders, Inc.</i> 2025-01459746	Before the court is the motion to deem this action complex filed by defendant and cross-complainant DiVita Builders, Inc. (DiVita). As more fully set forth below, the motion is DENIED. The designation of a case as complex is governed by California Rules of Court, rule 3.400, et seq. Rule 3.400(a) provides, a “‘complex case’ is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel.” Rule 3.400(b) establishes a nonexclusive list of factors the court must consider in determining whether a case is complex. The factors include “whether the action is likely to involve: [¶] (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; [¶] (2) Management of a large number of witnesses or a substantial amount of documentary evidence; [¶] (3) Management of a large number of separately represented parties; [¶] (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or [¶] (5) Substantial postjudgment judicial supervision.” The factors stated in rule 3.400(b) are not an exhaustive list of the factors a court must consider, nor must all the identified factors be present to deem a case complex. Rather, the court must consider the totality of the circumstances presented in the particular case and what is needed to manage and potentially try the case. The factors identified in rule 3.400(b) are simply illustrations of the type of considerations the court must evaluate and perhaps even just one of those factors could justify a complex case designation in an appropriate case. (See <i>Ford Motor Warranty Cases</i> (2017) 11 Cal.App.5th 626, 641, <i>First State Ins. Co. v. Superior Court</i> (2000) 79 Cal.App.4th 324, 332.) Rule 3.400(c) identifies the following types of claims as provisionally complex: “(1) Antitrust or trade regulation claims; [¶] (2) Construction defect claims involving many parties or structures; [¶] (3) Securities claims or investment losses involving many parties; [¶] (4) Environmental or toxic tort claims involving many parties; [¶] (5) Claims involving mass torts; [¶] (6) Claims involving class actions; or [¶] (7) Insurance coverage
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		claims arising out of any of the claims listed in (c)(1) through (c)(6)." "With or without a hearing, the court may decide on its own motion, or on a noticed motion by any party, that a civil action is a complex case or that an action previously declared to be a complex case is not a complex case." (Cal. Rules Ct., rule 3.403.) Neither the parties' stipulation nor the lack of any opposition to a motion to deem a case complex justifies granting such a motion. Further, not all cases alleging defects in construction are automatically deemed complex. As with motions to seal documents, the court must independently review the matter and determine whether a case meets the standards of rule 3.400. DiVita suggests this case should be deemed complex because it is a construction defect case and such cases are provisionally deemed complex. More accurately, construction defect claims involving many parties or structures are provisionally complex. This case, however, arises from construction of a single-family residence; it does not involve many structures. Plaintiff HDO 14, LLC (HDO) is the owner of the property located at 5 Coral Ridge, Newport Coast, California. HDO has filed suit against Antigua Investments, LLC (developer) and DiVita (Antigua's general contractor). In constructing the house, DiVita hired 15 subcontractors who each executed indemnity agreements. DiVita has now filed a cross complaint naming the 15 subcontractors. Divita points to the addition of these subcontractors via cross-complaint, and the additional indemnity cross-complaints that will ensue as satisfying the many parties requirement. However, other than this case involving a construction defect and multiple parties, there is nothing "complex" about it. DiVita provides makes vague and conclusory statements that the litigation will concern "condition of the property, the timing and nature of alleged defects, responsibility among potentially numerous actors, and the effect of successive property transfers on ownership, title, standing, damages, and related defenses." (Gruetter Decl. ¶2.) This is not unusual nor indictive of a need for specialized supervision in the complex department. DiVita also argues the litigation issues will include "ownership and title-related questions, causation, scope of repair, allocation of responsibility, apportionment,
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		indemnity, contribution, expert analysis, and procedural coordination of discovery and motion practice among many separately represented parties.” (Gruetter Decl. ¶4.) The Code of Civil Procedure provides an extensive framework for conducting discovery, filing pleadings, appointing referees, etc. These are the types of issues that the judges of this court’s unlimited civil panel are experienced in handling. It is not uncommon for them to hear cases with many witnesses and voluminous documents. They frequently address the best way to present a case, including bifurcating or severing multiple issues and designating the sequencing of issues. They have the ability to schedule multiple conferences in advance of a trial date for issue resolution and planning purposes. Further, there is no evidence the parties have been unable to serve discovery or issue subpoenas such that specialized case management is necessary. In fact, there are no pending discovery motions. The fact that DiVita has named its 15 subcontractors in a cross-complaint does not compel a finding that the case is “complex.” To the contrary, the court is charged with the duty to consider multiple factors in making such a determination. (See, Rule 3.400(b).) When the totality of the circumstances presented by DiVita are considered, the court concludes this case does not meet the standards of rule 3.400 for complex case designation. Accordingly, the motion is DENIED. DiVita’s counsel is ordered to give notice of this ruling.
12.	Young vs. Byars 2017-00924659	Before the court is the latest motion for attorney fees filed by judgment assignee Collect Co. (Assignee) seeking \$19,819.09 in attorney fees and costs from judgment creditors/assignors William Young and Jennifer Young (Assignors). As more fully set forth below, the motion is GRANTED. Assignors succeeded in obtaining a default judgment in this case against defendants. They then signed an agreement (Agreement) assigning their rights to the judgment to Assignee. (Ammar Decl. ¶ 4, Ex. A; ROA 156.) After Assignee began efforts to collect on the judgment, Assignors began a lengthy series of motions, applications, and lawsuits challenging the validity of the Agreement and seeking to prevent Assignee from collecting on the judgment. The validity of the Agreement and Assignee’s rights, however, have been determined and upheld by Judge Griffin of this court and affirmed by the Court of

	Appeal. (Lula Decl., Ex. A; ROA 970.) Nonetheless, Assignors have continued in their efforts to invalidate the Agreement which has resulted in multiple attorney fee awards against Assignors pursuant to the terms of the Agreement and Code of Civil Procedure section 128.5. This motion is the latest motion for attorney fees by Assignee to recover its attorney fees and costs for repeatedly and successfully opposing Assignors' challenges to the Agreement, prior fee awards, and Assignee's efforts to collect on those awards. Under the express terms of the Agreement, Assignors agreed to indemnify Assignee and to pay Assignee's attorney fees and costs. (Ammar Decl., Ex. A § 8.) The Agreement also permits the prevailing party (between Assignee and Assignors) in any legal action to recover reasonable attorney fees and costs. (Ammar Decl., Ex. A § 10.) By this motion, Assignee seeks to recover the attorney fees and costs it has incurred in responding to Assignors' litigation efforts from March 2025 to May 2026, as well as the fees and costs incurred in connection with this motion. Assignee has successfully opposed all Assignors' efforts during this time period and therefore is the prevailing party as against Assignors in connection with these litigation efforts in this case. Accordingly, under the terms of the Agreement and pursuant to Civil Code section 1717, subdivision (a), and Code of Civil Procedure section 1033.5, subdivision (a)(10)(A), the court again finds Assignee is entitled to recover attorney fees and costs from Assignors. The court also finds Assignee is entitled to recover its attorney fees and costs pursuant to Code of Civil Procedure section 128.5 because those fees and costs were again incurred as a result of Assignors' actions or tactics, made in bad faith, that are frivolous. As the U.S. District Court found in Assignors' lawsuit against the prior judge and numerous other parties connected to this case, the \$730 hourly rate for Assignee's counsel is reasonable based on the rates for this type of work in the Orange County legal community. The court also finds the number of hours Assignee's counsel has incurred in responding to Assignors' efforts to be imminently reasonable and the costs to be appropriate and reasonable as well. Based on the foregoing, the motion is GRANTED, and the court therefore awards a total of \$19,819.09 in attorney fees and costs in favor of Assignee and against Assignors.
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		Assignee's counsel is ordered to give notice of this ruling.
13.	<i>Claim of De Leon</i> <i>2021-01209589</i>	Before the court is the motion of petitioner People of the State of California (Petitioner) for Default and Default Judgment of Forfeiture regarding seized property in the form of \$34,068 in United States Currency. The court will not post a tentative ruling on the merits. Instead, counsel should appear to discuss the applicability and impact of Code of Civil Procedure section 583.310 et seq. Section 583.310 provides, "An action shall be brought to trial within five years after the action is commenced against the defendant." Section 583.360 provides, "(a) An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article. [¶] (b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute." As these statutes indicate, the court is required to dismiss an action if it is not brought to trial within five years of commencement unless an extension, excuse, or tolling established by statute extends the five-year period. The burden is on the plaintiff or petitioner to establish through admissible evidence some statutorily recognized basis for extending or tolling the five-year period. The court may not create any additional excuses beyond those established by the governing statutes. Civil forfeiture proceedings are civil in nature and generally governed by the Code of Civil Procedure unless inconsistent with the forfeiture statutes. Indeed, Health and Safety Code section 11488.5, subdivision (c)(3), provides, "The provisions of the Code of Civil Procedure shall apply to proceedings under this chapter unless otherwise inconsistent with the provisions or procedures set forth in this chapter. However, in proceedings under this chapter, there shall be no joinder of actions, coordination of actions, except for forfeiture proceedings, or cross-complaints, and the issues shall be limited strictly to the questions related to this chapter." Health and Safety Code section 11488.4, subdivision (a)(1), provides, "A petition under this section is an unlimited civil case, regardless of the value of the seized property." Accordingly, it would appear the five-year mandatory dismissal rule established by Code of Civil Procedure section 583.310 et seq. applies to civil forfeiture cases such as this one, and requires them to be brought to trial within five years of commencement or be subject to mandatory

		dismissal. Here, Petitioner filed its petition to commence this action on July 9, 2021, and therefore more than five years have elapsed since commencement without this action being brought to trial. The court has raised this issue with Petitioner multiple times, and Petitioner has said they would bring a motion to address it. The current motion, however, does not appear to address the five-year issue. Petitioner previously has indicated they would like a conviction in the underlying criminal case, but one still has not been obtained and Petitioner nonetheless brought this action. Indeed, multiple forfeiture statutes, including the one under which this motion is brought, provide that a conviction is not required. Accordingly, Petitioner should be prepared to address these issues at the time of the hearing.
14.	<i>Seton Hall University vs. Spitz</i> 2026-01555640	Before the court are the following motions filed by respondent Eric Spitz (Respondent): (1) motion to quash deposition subpoena, or in the alternative for a protective order and to vacate or modify the June 1, 2026 order; and (2) motion to vacate the May 29, 2026 monetary sanctions order. For the reasons set forth below, both motions are DENIED. <u>Motion No. 1: Motion to Quash (ROA 150)</u> Code of Civil Procedure section 1987.1 provides “upon motion reasonably made” by a party or witness, a court “may make an order quashing [a] subpoena entirely, modifying it, or directing compliance with it upon those terms and conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1, subd. (a).) Respondent seeks to quash the deposition subpoena served on Respondent that is the subject of this action (Subpoena), or alternatively, he seeks a protective order barring compelled disclosure of Respondent’s confidential sources, unpublished newsgathering materials, or journalistic work product, on the grounds Respondent is a newsperson and the subpoena seeks materials protected by the California Shield Law and the First Amendment reporter’s privilege. As an initial matter, as petitioner Seton Hall University (Petitioner) points out, the motion is unaccompanied by a separate statement. California Rules of Court, rule 3.1345(a)(5) requires a separate statement to be filed for any motion to quash the production of documents at a deposition. Therefore, to the extent Respondent seeks to quash the twenty-four requests for production of

	documents included in the deposition subpoena, the motion is denied on this basis. (See <i>Mills v. U.S. Bank</i> (2008) 166 Cal.App.4th 871, 893 [trial court was well within its discretion to deny motion to compel discovery on basis party did not comply with separate statement requirement].) The motion also is not “reasonably made” within the meaning of Code of Civil Procedure section 1987.1. The Subpoena was issued on December 1, 2025, for a deposition on January 12, 2026. (Dee Decl., ¶¶ 11-12, Ex. 3, ROA 247.) Respondent was personally served with the Subpoena on December 20, 2025. (See <i>Ibid.</i>) Respondent filed no formal objections to the Subpoena and filed no proper motion to quash prior to the date initially set for the deposition. Moreover, on May 28, 2026, the court granted Petitioner’s petition to enforce the Subpoena and ordered Respondent to appear for deposition on Monday, June 15, 2026, and produce all responsive documents. (ROA 67.) Respondent did not file the instant motion until seven months after being served with the Subpoena, six months after the initial deposition date, and more than six weeks after the court granted the petition in this action. In his supplemental memorandum filed August 11, 2026, Respondent argues the motion is timely based on his earlier failed attempts to file a motion to quash. The court’s records show on January 12, 2026, Respondent attempted to file a motion to quash in case number 30-2025-01528524 – the case in which the clerk of the court issued the Subpoena – but the filing was rejected because the documents were not in proper legal format. Respondent never attempted to re-file the motion. (See ROA 13, Case No. 30-2025-01528524.) Furthermore, Respondent did not file any opposition to the petition to enforce the Subpoena in the instant action and did not appear at the May 28, 2026 hearing on the petition. As the record demonstrates, Respondent contacted courtroom staff a few minutes before the hearing to state his counsel was unavailable to appear, however, no basis for his counsel’s inability to appear was provided and no message was received from counsel or his office. Also, no request for any action by the court was made. (See Minute Order at ROA 67.) The court therefore proceeded with the hearing. Respondent also contends the Shield Law is a “non-waivable protection” that may be asserted against compelled disclosure at any time. As Petitioner points out, Respondent cites no authority supporting this proposition. Respondent also cites no authority showing an assertion of
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		the Shield Law immunity suffices to cure an otherwise untimely motion to quash. Under these circumstances, Respondent failed to show his motion under Code of Civil Procedure section 1987.1 is "reasonably made." To the extent Respondent alternatively seeks an order vacating or modifying the court's June 1, 2026 order granting the petition to enforce the deposition subpoena, no separate authority is cited for this request. To the extent Respondent relies on Code of Civil Procedure section 1987.1, the request is denied for the same reasons discussed above. To the extent the motion can be considered a motion for reconsideration, as Petitioner asserts, such motion is untimely because it is not made within 10 days after service of written notice of the order, and Respondent has not otherwise satisfied the requirements for reconsideration. (See Code Civ. Proc., §1008, subd. (a).) Notice of entry of the subject order was served on Respondent on June 1, 2026. (ROA 80.) This motion was not filed until July 14, 2026. Moreover, as the court noted in its May 29, 2026 order granting Petitioner's request for sanctions, the Shield Law protects news media against punishment for contempt, but it does not create a privilege against testifying. (<i>Delaney v. Superior Court</i> (1990) 50 Cal.3d 785, 797, fn. 6; <i>Bakersfield Californian v. Superior Court</i> (2023) 96 Cal.App.5th 1228, 1249.) "Because the shield law provides only an immunity from contempt, there is nothing from which to seek relief until a newsperson has been adjudged in contempt." (<i>New York Times Co. v. Superior Court</i> (1990) 51 Cal.3d 453, 459, emphasis in original.) Similarly, Respondent has not shown the qualified constitutional privilege for news media applies and provides a wholesale excuse from appearing for deposition. Based on the foregoing, the motion is DENIED in its entirety. In accordance with the court's prior order enforcing the deposition subpoena (as well as Respondent's representation in his supplemental filings), Respondent is ordered to appear for his deposition within 20 days of service of notice of this order. Any disputes regarding the content of any specific questions and the answers or objections thereto can be presented to the court upon noticed motion after good faith meet and confer efforts.
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Sanctions: Given the significant procedural deficiencies with this motion and the fact this court previously has ordered Respondent to appear for deposition pursuant to the deposition subpoena, the court finds this motion was made without substantial justification. An award of reasonable expenses to Petitioner is thus appropriate. (Code Civ. Proc., § 1987.2(a).) The amount requested by Petitioner is excessive, however, based on the number of hours requested and attorneys for which time is sought. The court will allow 10 hours for associates and 4 hours for partners. This results in total fees of \$5,200 (10 hours x \$300 + 4 hours x \$550).

Respondent is ordered to pay \$5,200 in monetary sanctions to Petitioner, through its counsel, within 45 days of service of this order.

Requests for Judicial Notice: Respondent's request for judicial notice at ROA 146, Items 1 and 2, and requests for judicial notice at ROA 196 and 217, Exhibits C through E, are **GRANTED** as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code, § 452, subd. (d); *Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

Respondent's request for judicial notice at ROA 146, Items 3 through 8, and requests for judicial notice at ROA 196 and 217, Exhibits A and B, are **DENIED**. (*Center for Community Action & Environmental Justice v. City of Moreno Valley* (2018) 26 Cal.App.5th 689, 695, fn. 4 [declining to take judicial notice of records not necessary for court's analysis].)

Objections: Petitioner's evidentiary objections are **OVERRULED**.

Motion No. 2: Motion to Vacate (ROA 151)

Respondent moves for an order vacating the court's May 29, 2026 order directing Respondent to pay \$6,900 in monetary sanctions to Petitioner.

Respondent moves to vacate the sanctions order on two grounds. First, Respondent contends the sanctions order is void because it was made and entered during the automatic stay of discovery proceedings imposed by Code of Civil Procedure section 425.16(g), which Respondent contends attached when he filed his Special Motion to Strike on May 29, 2026. This argument fails as the court already determined, when it denied Respondent's special motion to

	strike on August 6, 2026, because the anti-SLAPP statute does not apply to the instant proceeding which concerns a petition to enforce a deposition subpoena and not a traditional cause of action. (See Minute Order at ROA 185.) Moreover, Respondent did not properly file the anti-SLAPP motion until after the court had ruled on the petition. (<i>Ibid.</i>) Thus, no discovery stay could have attached. Petitioner raised these arguments in its opposition to the instant motion. Respondent filed no reply and thus failed to make any showing that the discovery stay under the anti-SLAPP statute could apply in this instance. Second, Respondent contends the court should grant discretionary relief under Code of Civil Procedure section 473, subdivision (b). Respondent asserts the sanctions order was entered because Respondent filed no opposition to the petition and made no objection at the May 28, 2026 hearing on the petition. Respondent contends this failure was caused by the inability of Respondent's counsel to appear that morning due to a personal emergency. Respondent contends this is excusable neglect warranting relief under section 473, subdivision (b). Initially, Respondent's underlying premise must be refuted. The court did not grant the petition/motion to enforce the subpoena because Respondent filed not opposition. The court granted the petition/motion because, as explained above, the California Shield Law and the First Amendment reporter's privilege do not excuse Respondent from his obligation to appear for the deposition. They may potentially provide a basis to object to or refuse to any certain questions, but they do not provide a wholesale excuse from the obligation to appear. The court further imposed sanctions because Respondent failed to establish a substantial justification for his actions. Granted, the failure to file any opposition or appear at the hearing prevented Respondent from meeting that burden, but there was no substantial justification regardless because, as stated, the privileges asserted did not excuse the failure to appear. So, to be clear, the court did not sanction Respondent simply because he did not file an opposition or appear at the hearing. Nonetheless, Code of Civil Procedure section 473, subdivision (b) provides, in relevant part: "The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable
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		neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).) "Excusable neglect is that neglect which might have been the act of a reasonably prudent person under the same circumstances." (<i>Huh v. Wang</i> (2007) 158 Cal.App.4th 1406, 1419.) Counsel's failure to discharge routine professional duties is not excusable. "Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable." (<i>Generale Bank Nederland, N.V. v. Eyes of the Beholder Ltd.</i> (1998) 61 Cal.App.4th 1384, 1400; <i>Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.</i> (2013) 217 Cal.App.4th 1096, 1112 ["The failure to introduce readily available, compelling evidence which supports the client's position . . . is not a mistake that a reasonably prudent person in the same circumstances might have made but rather conduct falling below the professional standard of care."].) "In order to qualify for relief under section 473, the moving party must act diligently in seeking relief." (<i>Elston v. City of Turlock</i> (1985) 38 Cal.3d 227, 234 (superseded by statute on other grounds).) Here, Respondent failed to show the motion was made within a reasonable time after the May 29, 2026 order was taken and failed to show excusable neglect. As to the timeliness of the motion, the sanctions order was served by email on Respondent's counsel on May 29, 2026. (ROA 69.) This motion was not filed until approximately six and a half weeks later. Respondent provides no explanation for this delay. The court finds the motion not made within a reasonable time after the order was taken. (See <i>Younessi v. Woolf</i> (2016) 244 Cal.App.4th 1137, 1145 [unexplained delay of 7 weeks rendered motion untimely].) As to excusable neglect, Respondent's counsel, Mr. Lockyer, states he was unable to appear at the May 28, 2026 hearing because of a sudden personal and family emergency that arose that morning. (See Lockyer Decl., ¶ 4.) Although Mr. Lockyer's declaration may sufficiently explain Respondent's failure to appear at the May 28, 2026 hearing, it does not explain why Respondent did not file a
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		written opposition to the petition prior to the May 28, 2026 hearing. The opposition was due on May 14, 2026. (Code Civ. Proc., § 1005, subd. (b).) Mr. Lockyer does not explain why the opposition was not timely filed on this date. Mr. Lockyer admits a substantive opposition had been prepared and was substantially complete on May 23, 2026, five days before the hearing. (Lockyer Decl., ¶ 10.) For some unexplained reason, however, that opposition was not filed with the court prior to the hearing. Mr. Lockyer does not explain how a personal emergency occurring on the morning of the hearing prevented him from filing the opposition which was in final form days before the hearing. "The failure to introduce readily available, compelling evidence which supports the client's position . . . is not a mistake that a reasonably prudent person in the same circumstances might have made but rather conduct falling below the professional standard of care." (<i>Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.</i> (2013) 217 Cal.App.4th 1096, 1112.) Respondent thus has not shown his failure to present a written opposition to the petition, and the resulting entry of the sanctions order, was due to any excusable neglect on the part of Respondent or his counsel. Accordingly, this motion also is DENIED. Petitioner's counsel is ordered to give notice of these rulings.
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